THE NATIONAL COMPANY LAW TRIBUNAL
CHANDIGARH BENCH, CHANDIGARH
(through web-based video conferencing platform)

CP (CAA) No. 22/Chd/Hry/2022
(2nd Motion)

Under Section 230-232 and Section of the Companies Act, 2013

In the matter of Scheme of Arrangement between:

Adva Optical Networking (India) Private Limited
CIN : U72200HR2010FTC056956
PAN: AAICA6795R

… Applicant Company No. 1/ Transferor Company

AND

Adva IT Solutions India Private Limited
CIN : U72200KA2013FTC068756
PAN: AABCO8357L

…. Applicant Company No. 2/ Transferee Company

Order delivered on: 20.04.2022

Coram: HON'BLE MR. HARNAM SINGH THAKUR, MEMBER (JUDICIAL)
HON'BLE MR. SUBRATA KUMAR DASH, MEMBER (TECHNICAL)

Present through video conferencing:

For the Petitioner Companies : Mr. Shivam Narang, Advocate

ORDER

This is a joint second motion company petition filed by the Petitioner-Companies, namely, **Adva Optical Networking (India) Private Limited** (Applicant Company No. 1/Transferor Company) and **Adva IT Solutions India Private Limited** (Applicant Company No. 2/ Transferee Company) under Section 230-232 of Companies Act, 2013 read with Rule 15 of the Companies

(Compromises, Arrangements and Amalgamations) Rules, 2016 (for Brevity "Rules") seeking sanctioning of the Scheme of Arrangement in the petition as well as for direction in relation to publication in press to be effected and notices to be issued to the authorities concerned in relation to date of hearing of the petition and calling for objections.

2. The first motion application filed vide CA (CAA) No.38/Chd/Hry/2020 was disposed on 17.03.2022 wherein the meetings of equity shareholders, secured creditors and unsecured creditors of all the Applicant Companies were dispensed with for the reasons mentioned in the aforesaid order. The main objects, date of incorporation, authorized and paid-up share capital and the rationale of the Scheme have been discussed in detail in the order dated 17.03.2022.

3. The notice of hearing will be advertised in "The Tribune" (English) and "Dainik Bhaskar" (Hindi), both in all India Edition not less than 10 days before the next date fixed for hearing.

4. In addition to the above public notice, the Petitioner Companies shall serve the notice of the petition on the following Authorities namely, a) Central Government through Regional Director (Northern Region), Ministry of Corporate Affairs; New Delhi; (b) Registrar of Companies, NCT of Delhi and Haryana; and (c) Official Liquidator (d) Jurisdictional Income Tax Authority by mentioning the PAN of the Company along with copy of this petition by speed post immediately.

5. The petitioner companies shall at least 7 days before the date of hearing of the petition file an affidavit regarding newspaper publication with newspaper clippings as well as service of notices on the authorities specified above. Objections, if any, to the 'Scheme' contemplated by the authorities to whom notice has been given may be filed on or before the date of hearing fixed herein,

failing which it will be considered that there is no objection to the approval of the 'Scheme' on the part of the authorities and this Tribunal will proceed in the matter, subject to other conditions being satisfied as may be applicable under the Companies Act, 2013 and relevant rules framed thereunder.

6. The next date of hearing of the petition shall be on 04.07.2022 for the consideration of the approval of the scheme as contemplated between the petitioner companies.

7. The Registry shall also report before the date fixed as to whether any objection has been received to the proposed 'Scheme'.

Sd/-
(Subrata Kumar Dash)
Member (Technical)

Sd/-
(Harnam Singh Thakur)
Member (Judicial)

April 20, 2022
PB